

See also: Trial by ordeal and combat 52–53 ■ The Assize of Clarendon 64–65 ■ The abolition of the death penalty 151
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It is much better to prevent even one man from being a rogue than apprehending and bringing forty to justice.

John Fielding

An Account of the Origin and Effects of a Police Set on Foot etc., 1758

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In 1361, the Justice of the Peace Act created a network of justices of the peace (JPs, or magistrates) across England to enforce order with the aid of part-time, unpaid constables and watchmen who were elected and later appointed by the local JP. They were also to be supported by the public. For example, if someone shouted “Stop, thief!” the public were expected to pursue and apprehend the accused person until a constable or watchman arrived to arrest them.

From the 16th century, wealthy merchants began to group together to pay for private “thief-takers,” known as stipendiary police, who would recover stolen items for a fee—but this system benefited only the rich and was open to corruption. Deterrents were the main method of enforcing law and order in the

17th century, and even minor misdemeanors such as stealing could be punished by death. Because this brutal form of justice had the most impact on the poor, social campaigners began to call for reform.

The Bow Street Runners

In the 18th century, the long-running British system of constables began to fail as many of the better-off people selected to serve *pro bono* (without payment) bought their way out of the responsibility, complaining that it took them away from their own affairs. As a result, the position often went to those without a job—the old, the sick, or the poor—who struggled to carry out their duties.

In 1749, magistrate and author Henry Fielding, along with his brother John, established the Bow Street Runners, a small team of salaried police working from London’s Bow Street Magistrate Courts. They did not patrol the streets but could serve writs or

pursue criminals on behalf of the court. The initial six constables were paid by central government and used organized methods of dealing with crime. However, they were not a preventative force because they could only act after a crime had been committed. Despite being limited to a small area of London, the idea of the Bow Street Runners as a professional police force proved influential.

Calls for reform

By the late 18th century, London was booming, crime levels were soaring, and the military were often called in to quell rioting. Magistrate Patrick Colquhoun pushed for police reforms in his *A Treatise on the Police of the Metropolis* (1796) and later called for efficient and highly motivated policemen with strong moral values. Colquhoun’s theories were tested in 1798, when he took charge of the newly created Marine Police (which later became the Thames River Police). This salaried »



The Bow Street Runners, London’s first salaried police force, are shown in their blue coats apprehending two men identified by a third as muggers who had made a career of robbing travelers.